

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kate Brattin	Team: Team # 1	CCRB Case #: 200712372	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/24/2007 5:40 PM	Location of Incident: § 87(2)(b)		18 Mo. SOL 2/24/2009		Precinct: 44
Date/Time CV Reported Mon, 08/27/2007 12:52 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/27/2007 12:52 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Mako	07315	932943	NARCB BX
2. DT3 Rolando Carbonell	06831	928017	NARCB BX
3. POM Keith Ames	26993	929627	NARCB BX
4. LT Christop Fasano	00000	915693	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Rolando Carbonell	Abuse: Detective Rolando Carbonell stopped § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . DT3 Rolando Carbonell	Force: Detective Rolando Carbonell used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Keith Ames	Force: Police Officer Keith Ames used physical force against § 87(2)(b)	C . Unsubstantiated
D . DT3 Rolando Carbonell	Abuse: Detective Rolando Carbonell frisked § 87(2)(b)	D . Unsubstantiated
E . DT3 Rolando Carbonell	Abuse: Detective Rolando Carbonell searched § 87(2)(b)	E . Unsubstantiated
F . DT3 Rolando Carbonell	Discourtesy: Detective Rolando Carbonell spoke rudely about § 87(2)(b)	F . Unsubstantiated
G . POM Keith Ames	Abuse: Police Officer Keith Ames threatened § 87(2)(b) with the use of force.	G . Unsubstantiated
H . DT3 Rolando Carbonell	Abuse: Detective Rolando Carbonell threatened § 87(2)(b) with the use of force.	H . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Synopsis

On August 24, 2007 at approximately 5:40 PM, § 87(2)(b) formerly of § 87(2)(b), Apartment § 87(2)(b) in the Bronx, was taking a walk with his friend, § 87(2)(b). As the men stood on § 87(2)(b) sharing a cigarette, two plainclothes Narcotics officers, identified by the investigation as Detective Rolando Carbonell and Police Officer Keith Ames, both assigned to Narcotics Borough Bronx, arrived in a vehicle. Detective Carbonell allegedly approached the men and ordered them to stop [Allegation A], indicating that they should get up against a parked car. When § 87(2)(b) asked why, Detective Carbonell allegedly pushed him against the car [Allegation B]. § 87(2)(b) alleged that at this point, PO Ames threw him to the ground and forced his knee into § 87(2)(b)'s back while twisting § 87(2)(b)'s arm and pushing his face into the cement [Allegation C]. PO Ames placed § 87(2)(b) in handcuffs. Detective Carbonell then allegedly frisked and searched § 87(2)(b) [Allegations D and E] and § 87(2)(b) removing objects from § 87(2)(b)'s pockets and throwing them to the ground. Detective Carbonell allegedly asked if § 87(2)(b) was retarded [Allegation F]. Finally, Officer Ames allegedly threatened to punch § 87(2)(b) in the mouth and tase him [Allegation G] and Detective Carbonell warned him that it was "on" [Allegation H]. § 87(2)(b) was arrested § 87(2)(a) 160.50 and released with a desk appearance ticket. § 87(4-b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Summary of Complaint

§ 87(2)(b) formerly of § 87(2)(b), Apartment § 87(2)(b) in the Bronx, was interviewed at the CCRB on September 5, 2007. At the time of his interview, § 87(2)(b) a § 87(2)(b)-old Hispanic male with blue eyes and brown hair who was 5'3" tall and weighed 143 pounds, stated that he was staying with relatives, but was planning to move § 87(2)(b) § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

On August 24, 2007, § 87(2)(b) was visiting in the neighborhood in the Bronx where he had grown up and where his friend § 87(2)(b) § 87(2)(b) known to him as "§ 87(2)(b)" had just moved. § 87(2)(b) ran into § 87(2)(b) who was getting his hair cut on 164th Street. They arranged to meet at § 87(2)(b)'s residence later. § 87(2)(b) was wearing shorts with five pockets: two in the front, two in the back, and one on the side on his right leg. His lighter and a loose ID card were in his front left pocket. He had a handheld electronic Yahtzee game that was 4"x5" in his rear left pocket. § 87(2)(b) was in a methadone program. His methadone was in liquid form in two 3-4" sealed white bottles with printed labels in his side pocket. He was also wearing blue Nike sneakers and a blue-and-white polo shirt similar, but not identical, to the one in the photographs of his injuries (Encl. 5E-5H).

§ 87(2)(b) lived § 87(2)(b), at § 87(2)(b). He and § 87(2)(b) went for a walk later that day, at about 4:00 PM, so that § 87(2)(b) could smoke a cigarette. § 87(2)(b) did not communicate with anyone in the neighborhood as they walked. They crossed § 87(2)(b) and turned left on § 87(2)(b). They stopped in front of a fire hydrant approximately twenty feet from the corner, one quarter of the way into the block. § 87(2)(b) was mostly residential. The two men were standing on the sidewalk on the western side of the street. Across § 87(2)(b) § 87(2)(b) noticed a group of four or five male Jamaican teenagers. § 87(2)(b) did not know the names of any of these men, but he knew some of them and had seen them in the past, standing in front of the same brownish, two-part building where § 87(2)(b)'s friend "§ 87(2)(b)" is the building superintendent. After about five minutes, at about 5:30 PM, they were ready to turn back. § 87(2)(b) knew the time because, when he told § 87(2)(b) all of the things he still had to do before the party he was planning to throw for his wife that evening, § 87(2)(b) informed him what time it was. A vehicle pulled up, driving north toward

§ 87(2)(b) The driver's side was closer to § 87(2)(b) and § 87(2)(b) and the passenger's side was closer to the Jamaican men. § 87(2)(b) initially described the vehicle in which the officers arrived as an unmarked navy blue "church van" with windows in the back and long, bench seats. Later, he remembered that it was a black or dark blue SUV and not a van. It pulled over to the eastern side of the street, the opposite side from § 87(2)(b) and § 87(2)(b). The van was double-parked. As the officers pulled over, § 87(2)(b) and § 87(2)(b) began to walk back the way they had come on the sidewalk, north toward § 87(2)(b). (At first, § 87(2)(b) explained that he did this because he was "scared of guns," but he later stated that he had finished his cigarette and was ready to head back.)

§ 87(2)(b) believed that the officers in the vehicle had been observing the Jamaican men. The officer who was driving was a white male, identified by the investigation as PO Ames, got out of the vehicle, ran around the front to get to the Jamaicans, and asked them for identification. The officer in the passenger's seat, identified by the investigation as Detective Carbonell, ran around the back of the van and crossed the street to approach § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not see either officer display his badge.

Detective Carbonell said "Hold it, hold it! Stop right there!" § 87(2)(b) and § 87(2)(b) stopped. Detective Carbonell indicated with his thumb that the men should get up against the blue Chrysler that was parked along the curb in between themselves and the officer. § 87(2)(b) looked at him and asked, "For what?" Detective Carbonell ran at § 87(2)(b). He appeared to be very angry. PO Ames also ran toward them at that point, saying that they had § 87(2)(b) and § 87(2)(b) on video for two hours on that block. § 87(2)(b) knew that this could not be true, since they had only been there for five minutes. § 87(2)(b) was standing four or five feet away from § 87(2)(b) when the officers first approached, but § 87(2)(b) was closer to the officers. Detective Carbonell grabbed § 87(2)(b) and slammed him against the hood of the car.

PO Ames ran up between two parked cars. He tackled § 87(2)(b) throwing him off the car into the street. § 87(2)(b) lay on his stomach with his left arm underneath his body, his elbow bent at a 45 degree angle, his upper arm parallel with his torso and his forearm perpendicular across his stomach. Once he was already on the ground, PO Ames came down on him, driving his right knee once into § 87(2)(b)'s lower back on the right side with the force of his weight. PO Ames grabbed § 87(2)(b)'s free right hand and pulled his right arm straight back. He twisted the arm. § 87(2)(b) was not resisting. He was lying still. At the same time, PO Ames used his other hand to push the back of § 87(2)(b)'s head, slamming the left side of § 87(2)(b)'s face into the street, and grinding it repeatedly into the concrete. (In his initial complaint, § 87(2)(b) attributed this action to Detective Carbonell.) § 87(2)(b) attempted to push back against the officer's hand with his head to keep his face up and out of the street. He stated that there was glass and "dog stuff" in the street. This was the only way in which he was resisting. He was not moving his arms or legs. PO Ames repeatedly ordered § 87(2)(b) to give him his other arm. § 87(2)(b) screamed that he could not, and yelled, "Get off of me!" because his arm was trapped under his body. This went on for approximately three or four minutes.

§ 87(2)(b) later told § 87(2)(b) that while this was happening, § 87(2)(b) saw Detective Carbonell draw and then drop his gun. Detective Carbonell ordered § 87(2)(b) not to grab the gun and to get down on the floor. § 87(2)(b) told him, "I'm not resisting, my hands are up, I'm just going to stay like this," and did not get down on the ground. Detective Carbonell picked up his gun. While § 87(2)(b) was on the ground, § 87(2)(b) advised his friend, "Yo, do not resist. Whatever you do, don't resist."

PO Ames finally got § 87(2)(b)'s other arm and handcuffed him, so tight that § 87(2)(b) had marks on his wrists. PO Ames picked § 87(2)(b) up by the neck of his shirt and the waistband of his pants and slammed him against the car. PO Ames turned him around so that § 87(2)(b)'s back was to the car. § 87(2)(b) saw the officers frisk § 87(2)(b). Detective Carbonell went through § 87(2)(b)'s wallet. § 87(2)(b) saw Detective Carbonell place his gun back in its holster, but stated that he did not see the officer with the gun out. Detective Carbonell was pacing in the street. He said, "Something's wrong," one time in Spanish ("No 'ta bien"), and then repeated this in English. He said, possibly to § 87(2)(b) or his partner, or possibly to himself, "Is he § 87(2)(b) retarded? Is he crazy? Nobody does this to me." § 87(2)(b) believed he was talking about § 87(2)(b)'s resistance, although § 87(2)(b) stated that he had not resisted.) § 87(2)(b) said, "You can ask him." Detective Carbonell asked § 87(2)(b) "Are you crazy?" PO Ames or Detective Carbonell said, "Now you're going to jail for the weekend." (At first, § 87(2)(b) stated that it was PO Ames, but later, he attributed the comment to Detective Carbonell.) PO Ames said that he was going to punch § 87(2)(b) in the mouth. § 87(2)(b) said, "What for, you hit like a

girl.” PO Ames said “Oh yeah? You keep it up, I’ll Taser you all day in a cell.” § 87(2)(b) quieted himself. The officers seemed angry that they had not found any drugs. Officers never asked him to identify himself or to leave an area.

At some point, after § 87(2)(b) was handcuffed and still outside, Detective Carbonell frisked § 87(2)(b). This occurred after § 87(2)(b) was frisked, and had left the scene to call § 87(2)(b)’s wife. Detective Carbonell felt § 87(2)(b)’s shirt area, then felt outside his pants and his crotch area. He reached inside § 87(2)(b)’s pockets and threw his lighter and his methadone into the street. He took the Yahtzee game and put it in an envelope. Detective Carbonell said, “You’re going to jail. I bet you’re on parole.”

§ 87(2)(b) believed that the Jamaicans were present throughout this interaction. He thought that other people might have been watching, too. He did not see the officers interact with the Jamaicans, and did not see them at the precinct.

The officers put § 87(2)(b) in their vehicle. Detective Carbonell told him, “When I see you, it’s on and poppin’.” (In his initial complaint, § 87(2)(b) reported that Detective Carbonell said, “I have seventeen years on the force. The next time I see you, it’s on.”) They took him to the church van he had described earlier, which a sergeant was driving with his partner. § 87(2)(b) told the sergeant about the property that the other officer had thrown away, and the sergeant got it back for him. He was taken to the Precinct stationhouse.

§ 87(2)(b) came to the stationhouse, where the sergeant who had transported § 87(2)(b) told § 87(2)(b) that § 87(2)(b) has sustained his facial injuries by banging his own head inside the van. § 87(2)(b) told the sergeant that § 87(2)(b) was bleeding before he went in the van. § 87(2)(b) did not hear this interaction himself. Inside the precinct, Detective Carbonell approached the holding cell with the desk appearance ticket prepared for § 87(2)(b), § 87(2)(b), § 87(2)(e), § 87(2)(f)

After his release, he went to the Emergency Room at § 87(2)(b). They took X-rays and told him that he was just bruised. They gave him some muscle relaxants and Ibuprofen for pain.

§ 87(2)(b) suffered bruising and abrasions to the left side of his face, marks from the handcuffs, and a bruised right arm from the officer twisting it. He also had a bruise under his right eye, but was unclear about how he had attained it. He suffered back pain. On the day of the interview, § 87(2)(b) had a visible but small abrasion on his left wrist above the bone.

Results of Investigation

Additional Civilian Statements

§ 87(2)(b)

§ 87(2)(b) a resident of § 87(2)(b) Apartment § 87(2)(b) in the Bronx, was interviewed at the CCRB on October 1, 2007. At the time of his interview, § 87(2)(b) was a § 87(2)(b)-old Hispanic male with thinning black hair and brown eyes who was 5’5” tall. He was employed as § 87(2)(b)

On August 24, 2007, § 87(2)(b) whose old nickname is § 87(2)(b), ran into his childhood friend § 87(2)(b) on the street in the neighborhood where § 87(2)(b)’s mother and § 87(2)(b) both live, on § 87(2)(b) and § 87(2)(b). After talking for fifteen minutes, § 87(2)(b) invited § 87(2)(b) to his residence at § 87(2)(b) where he had moved about seven months before. However, it was hot inside the apartment, so after about half an hour, at about 3:00 PM, they took a walk around the neighborhood. They smoked two or three cigarettes, sharing each one. The cigarettes were Newports with orange tips. They were outside together for less than 20 minutes. § 87(2)(b) was not sure where they walked, but stated that they walked around the block past the park located two blocks away to the west, then walked north to § 87(2)(b) then looped around onto § 87(2)(b) walking south. They did not see anyone they knew on the walk. § 87(2)(b) and § 87(2)(b) stopped on § 87(2)(b) near some scaffolding, indicated on the map he drew by a line parallel to the sidewalk, in order to finish a cigarette. There were a few other people across § 87(2)(b) including a man § 87(2)(b) recognized from the neighborhood, although he did not know the man’s name. This individual was standing across the street

talking to someone else, and had been there before § 87(2)(b) and § 87(2)(b) arrived. He was across the street for the duration of the incident.

After standing there for approximately five to ten minutes, they were about to move on and had started to walk north toward § 87(2)(b) when § 87(2)(b) noticed two men across the street he had never seen before. He didn't see them arrive in a vehicle, and was not aware at the time that they were police officers. He did not see them approaching any other civilians. One of them yelled something, and § 87(2)(b) turned to look. § 87(2)(b) continued to walk, ahead of § 87(2)(b). An officer, identified as Detective Carbonell, approached the men. He came around the front of a van that was parked by the curb on the same side of the street where the men were located. This was not his vehicle, which was a blue mini-van double-parked across the street; the parked van had been there the whole time. Detective Carbonell flashed a hand-sized object, but § 87(2)(b) whose eyesight was poor, was unable to see what the object was before the officer put it away. § 87(2)(b) did not believe that § 87(2)(b) saw the object at all. § 87(2)(b) said, § 87(2)(b) hold on," and § 87(2)(b) stopped walking.

Detective Carbonell ordered them to put their hands against the parked van. § 87(2)(b) who was closer to Detective Carbonell at the time, put his hands up. He did not put them on the van. § 87(2)(b) asked, "What happened?" Detective Carbonell repeated his order, moving nearer to § 87(2)(b). § 87(2)(b) put his hands up as high as his head with his palms facing in, in a questioning gesture similar to a shrug, and started to say something else. The men were standing on the sidewalk near a tree, lined up with the rear of the parked van. Detective Carbonell grabbed the collar of § 87(2)(b)'s shirt. § 87(2)(b) said, "Wait a minute!" and took hold of Detective Carbonell's arm. Detective Carbonell threw § 87(2)(b) to the ground by wrapping both of his arms around § 87(2)(b)'s neck. He had his back to § 87(2)(b). § 87(2)(b) was brought to the ground in the space between the back of the van and the front of another van parked behind it. The lower part of his body was in the street and the upper part was on the sidewalk. He was positioned on his side and Detective Carbonell was on top of him. At this point, § 87(2)(b) saw a second officer, identified as PO Ames, who came around the back of the parked vehicle and got on § 87(2)(b)'s back as well. (Later, § 87(2)(b) stated that PO Ames helped to put § 87(2)(b) to the ground. He stated that, because both officers were large men and were obstructing his view, he did not see exactly how § 87(2)(b) was brought to the ground.) Detective Carbonell had his hand on the right side of § 87(2)(b)'s head, pressing the left side of his face into the sidewalk. PO Ames was on § 87(2)(b)'s lower back, while Detective Carbonell was on his upper back. Both officers were attempting to place him in handcuffs. Both officers had their backs to § 87(2)(b). § 87(2)(b) believed that they both had their knees on § 87(2)(b). § 87(2)(b)'s right arm was in the air; the officers seemed to be trying to pull his left arm back to cuff him, but it wouldn't bend the way they wanted it to because of his position. § 87(2)(b) told them that they were hurting his back, and that he couldn't move his arm because of the pressure they were putting on his back. He did not move his free right arm at this time. The officers were holding it. § 87(2)(b) was moving his legs a little, but § 87(2)(b) believed that he was attempting to position himself less painfully and was not resisting arrest.

While they were struggling, Detective Carbonell's gun popped out of a holster in the right-hand side of his belt and fell on the ground, next to § 87(2)(b) and the tree. He did not see anything hit it to make it fall. § 87(2)(b) pointed it out to PO Ames. Detective Carbonell told § 87(2)(b) to get on the floor. § 87(2)(b) kneeled on the ground and placed his hands on the tree. The officers got off § 87(2)(b) and PO Ames handcuffed § 87(2)(b) while Detective Carbonell retrieved his gun. The gun was unsecured for two or three minutes in total. Detective Carbonell thanked § 87(2)(b) for not touching it.

PO Ames picked up § 87(2)(b) and threw him against the van. § 87(2)(b) had been on the ground for a few minutes, all together. PO Ames began to search § 87(2)(b)'s pockets. He took the objects from § 87(2)(b)'s pockets and threw them on the ground. Detective Carbonell frisked § 87(2)(b). He put his hands inside § 87(2)(b)'s two front pants pockets, which contained keys, a lighter, and cigarettes. The officer did not remove any items from the pockets. § 87(2)(b) asked the officer if he wanted to see ID, and handed him his ID card. Detective Carbonell looked at it, but did not seem to write down any information. Detective Carbonell mentioned that they'd had the men under surveillance for two hours. § 87(2)(b) got angry and told the officers that this was a lie and that they had only been there for twenty minutes. Detective Carbonell asked § 87(2)(b) if § 87(2)(b) was retarded. § 87(2)(b) interpreted this as an insult, rather than as an actual inquiry. He did not know what prompted the officer to ask. He told Detective Carbonell that he would have to ask § 87(2)(b) himself. Detective Carbonell did not ask § 87(2)(b).

PO Ames put § 87(2)(b) in their vehicle, which was a dark blue unmarked van parked across the street. Detective Carbonell searched the ground in the immediate area where the men had been located, and looked under both parked vans. He said, "Something ain't right." Detective Carbonell explained in Spanish that he was from the neighborhood, from Walton, and knew "what was going on." § 87(2)(b) asked him what he meant. Detective Carbonell repeated that he knew what was going on. § 87(2)(b) said that the officers had them confused with other people. Detective Carbonell told § 87(2)(b) to go home. § 87(2)(b) asked if he could talk to § 87(2)(b). The officer allowed § 87(2)(b) to approach the van and ask § 87(2)(b) if he was OK. There were no other prisoners inside. § 87(2)(b) said that he was all right so far, but that his back and shoulder were hurting. § 87(2)(b) observed that the left side of § 87(2)(b)'s forehead was bleeding. He could not see any other injuries. Neither officer appeared to be injured or complained of injuries.

An officer told § 87(2)(b) that he could meet § 87(2)(b) at the 44th Precinct in an hour. § 87(2)(b) checked in an hour, but § 87(2)(b) was not brought to the stationhouse until two hours later. § 87(2)(b) spoke to a different officer in the stationhouse, who told him that he should "pick better friends." § 87(2)(b) explained that § 87(2)(b) was his childhood friend, and that it wasn't fair that the officers jumped on § 87(2)(b) for no apparent reason. The officer said that they might release § 87(2)(b) that night. § 87(2)(b) went home. He found out after § 87(2)(b) was released that he was charged § 87(2)(a) 160.50. He never heard the officers order anyone to leave the area.

Officer Statements

Detective Rolando Carbonell:

Detective Rolando Carbonell, a § 87(2)(b) old Hispanic male with dark skin, a shaved head and brown eyes, who weighed 220 pounds and was 6'2" tall, was interviewed at the CCRB on October 24, 2007 (Encl. 7A-B).

On August 24, 2007, Detective Carbonell's team was doing buy-and-bust operations. Detective Carbonell worked from 6:23 AM until 3:00 PM. He worked overtime until 10:40 PM. He was assigned to the chase car, a dark colored Jeep Cherokee Sport with PO Ames. He was dressed in plain clothes. Detective Carbonell could not remember who was the driver of the vehicle. He did not have any entries in his memo book (Encl. 6A-B) relating to § 87(2)(b).

Detective Carbonell had no entries in his memo book about the specifics of the buy-and-bust operations that occurred on August 24, 2007, and did not note any arrests, but he knew that he had made arrests because of the overtime he had worked. He could not remember how many arrests the team made, nor did he specifically remember any arrests from that day. Detective Carbonell stated that the assignments of the members of his team change every day, and there is always one assigned arresting officer. He could not remember who else was working on August 24, 2007, aside from PO Ames, his partner. Detective Carbonell's team sometimes used video footage when investigating cases, but does not use it to make observations for buy-and-bust operations. There were no NYPD or NYCHA buildings near 165th Street where the incident took place that had video cameras.

Detective Carbonell did not remember if he stopped § 87(2)(b) and § 87(2)(b) § 87(2)(b) on August 24, 2007, but allowed that it was possible. He did not remember using force against § 87(2)(b). He noted that if he had used force, he would have documented it in his memo book, and that furthermore, the charge against § 87(2)(b) would not have been § 87(2)(a) 160.50 and § 87(2)(b) would not have been eligible for a DAT. Detective Carbonell did not threaten § 87(2)(b) with the use of force, and did not threaten to use a Taser against him. He stated that he is not authorized to use a Taser. He did not remember frisking § 87(2)(b) or § 87(2)(b). He did not remove property from § 87(2)(b) and throw it in the street. He did not ask § 87(2)(b) if he was retarded. Detective Carbonell stated that if § 87(2)(b) was stopped as alleged, a UF-250 would have been prepared.

Detective Carbonell was shown the photograph of § 87(2)(b) that was taken when the complainant was interviewed at the CCRB. Detective Carbonell stated that § 87(2)(b) looked familiar from the area of § 87(2)(b) between § 87(2)(b) and § 87(2)(b) and that he had dealt with him before, but that he had never arrested him and did not remember the nature of their past interactions. He acknowledged that his team may have arrested § 87(2)(b). He stated that § 87(2)(b) was often in the drug-prone location where his team does enforcement. Detective Carbonell stated that he had probably

stopped § 87(2)(b) in the past, but did not remember any specific instances. When shown a photocopy of § 87(2)(b)'s ID, Detective Carbonell stated that he did not specifically remember him.

Police Officer Keith Ames:

Police Officer Keith Ames, a § 87(2)(b)-old white male with brown hair and brown eyes who weighed 240 pounds and was 6'1" tall, was interviewed at the CCRB on November 7, 2007 (Encl 10A-B).

PO Ames had not brought his memo book to the CCRB on the day of his interview and had no independent recollection of his tour on August 24, 2007. The entries from the date of the incident (9A-B), which he later faxed to the CCRB, did not contain any reference to § 87(2)(b) or § 87(2)(b). In his interview, he stated that he did not remember if he had worked on August 24, 2007. He was presented with the roll call, which showed that he worked a 0630x1500 tour and that at some point during the tour, he was in court getting a search warrant. PO Ames explained that court was usually over by 5:00 or 6:00 PM. He stated that he usually worked with PO Mako and Detective Carbonell. He did not know if he had worked with them on the date in question.

PO Ames stated that his team utilized four vehicles for Buy and Bust operations – a black Jeep, a blue Dodge Caravan, a tan Caravan, and a white passenger van – all of which work at once. The white van was the prisoner van, but any of the other three could have been the chase car to which the tactical plan showed that PO Ames was assigned on August 24 with Detective Carbonell and Detective Smith. PO Ames stated that the buy-and-bust operations he performs usually do not have specific targets, but rather depend upon conditions and complaints, and are guided by the supervisor and the arresting officer of the day. When working chase car, PO Ames stated that he would wait until directed to move in after undercover officers had completed a drug purchase. PO Ames did not recognize § 87(2)(b) or § 87(2)(b) from the photographs he was shown, and stated that he had never arrested § 87(2)(b) and did not recall interacting with the two men on August 24, 2007. PO Ames did not recall stopping them, asking them to leave an area, threatening them, using force against them, or referring to anyone as retarded. He did not recall frisking or searching them. He could not recall his partner doing so.

PO Ames stated that the arresting officer of the day is not necessarily present for the physical arrests of the defendants he processes, but that he usually is. He stated that if the assigned arresting officer was not present for an arrest, an officer who had been would write the narrative on the arrest report. He did not remember writing the narrative that appeared on § 87(2)(b)'s arrest report (Encl. 13A-D).

Lieutenant Christopher Fasano:

Lieutenant Christopher Fasano, a § 87(2)(b)-old white male with brown hair and brown eyes who weighed 250 pounds and was 5'11" tall, was interviewed at the CCRB on November 29, 2007 (Encl. 11A-B).

On August 24, 2007, Lieutenant Fasano worked from 12:30 PM until 9:05 PM. He was supervising Module 44-01 for enforcement operations in the 44th Precinct. At the time, eight officers made up the module, including PO Mako, Detective Carbonell, PO Ames, Detective Vasquez, Detective Paradiso, Detective Smith, and one or two undercover officers. Lieutenant Fasano was assigned to a 2007 black Jeep Cherokee Laredo, plate #§ 87(2)(e), § 87(2)(b). PO Mako was the vehicle's operator. Lieutenant Fasano was dressed in plain clothes. He does not keep a memo book.

Lieutenant Fasano stated that he had reviewed arrest paperwork before coming to the CCRB, and that he had a vague recollection of events. He stated that § 87(2)(b) was arrested at 5:40 PM for § 87(2)(a) 160.50. Lieutenant Fasano was told that § 87(2)(b) was stopped for narcotics investigation and was immediately "non-compliant" and aggravated. He was arrested § 87(2)(a) 160.50 and placed in the prisoner van. Lieutenant Fasano was not present for the physical arrest, but showed up to verify the arrest while § 87(2)(b) was being placed in the van. PO Mako, the official arresting officer, arrived with Lieutenant Fasano. Detective Paradiso and Detective Vasquez were the officers assigned to the prisoner van listed on the tactical plan that day, but Lieutenant Fasano was not sure which was the operator. The white van is the only prisoner van in use by the team.

Lieutenant Fasano believed that Detective Carbonell had physically arrested the individual, and Detective Paradiso was helping the handcuffed defendant into the van when Lieutenant Fasano and PO Mako arrived. Lieutenant Fasano did not see another civilian at the scene besides § 87(2)(b). He was informed by Detective Paradiso that § 87(2)(b) had a preexisting medical condition; a non-serious

contusion to his forehead which did not require medical attention. To Lieutenant Fasano's knowledge, § 87(2)(b) was not injured during the course of his arrest.

Lieutenant Fasano did not recall § 87(2)(b) being frisked or searched while he was present, and did not call § 87(2)(b) retarded or threaten him with being tased, nor did he hear other officers do so. Lieutenant Fasano is the only member of his team trained to use a Taser, which he does not habitually carry with him.

Lieutenant Fasano was informed that § 87(2)(b) behaved in an aggravated manner inside the van while being transported and began to bang his head against the window, smearing blood on it. Lieutenant Fasano did not personally observe § 87(2)(b) behaving in an agitated manner.

§ 87(2)(b) was brought to the stationhouse, held in a cell, and given assistance to clean his wound. Detective Paradiso informed Lieutenant Fasano that § 87(2)(b) resisted being cleaned up and photographed, and refused an ambulance. A Medical Treatment of Prisoner form was prepared by Detective Paradiso to document this. § 87(2)(b) was released on a DAT, prepared by PO Mako, the arresting officer of the day, under Lieutenant Fasano's authority. PO Mako would have also filled out the narrative on § 87(2)(b)'s arrest report.

Lieutenant Fasano was aware that Detective Carbonell had been assigned to work with PO Ames and Detective Smith, but did not believe that Detective Smith had been present in the car with them. He stated that the module often switches vehicles in the field, and therefore, Detective Carbonell and PO Ames may not have been in the blue Dodge to which they were assigned on the tactical plan.

During his interview, Lieutenant Fasano was presented with photographs of § 87(2)(b) and § 87(2)(b) neither of whom he recognized. He stated that his team does not use video footage for their enforcement operations. He does not know of any officer who wears a Derek Jeter jersey.

Police Officer James Mako:

Police Officer James Mako completed **Desk Appearance Ticket** § 87(2)(b) for § 87(2)(b) (Encl. 14A), as well as an **arrest report** (Encl. 13A-D). § 87(2)(b) was charged § 87(2)(a) 160.50 § 87(2)(a) 160.50

PO Mako, a § 87(2)(b) old white male with brown hair and brown eyes who weighed 235 pounds and was 5'11" tall, was interviewed at the CCRB on October 9, 2007 (Encl. 15A-B).

On August 27, 2007, PO Mako worked from 12:33 PM to 9:00 PM. He was assigned to buy-and-bust operations with Lieutenant Fasano, working with a team that included Detective Paradiso, Detective Carbonell and PO Ames. He was dressed in plain clothes and was assigned to an unmarked black Jeep as the lieutenant's driver. The team worked together all day, but had spread out and were doing separate observations. He had no memo book entries regarding § 87(2)(b)'s arrest (Encl. 12A-B).

PO Mako stated that he was the assigned arresting officer for the day, which was how his name came to be on § 87(2)(b)'s arrest paperwork, but he was not present for § 87(2)(b)'s physical arrest. PO Mako believed that Detective Carbonell and PO Ames placed § 87(2)(b) under arrest. The two officers told PO Mako later that they had observed § 87(2)(b) make some sort of exchange and that when they approached him, he began to scream and act erratically, which was when they arrested him.

PO Mako and Lieutenant Fasano heard over the point-to-point radio that officers needed the prisoner van. PO Mako was not sure who called, but the lieutenant had him respond. They arrived at the scene after § 87(2)(b) was already handcuffed and inside the white prisoner van. He did not see § 87(2)(b) at this time, and did not hear anyone call him retarded or crazy. He did not witness anyone frisk or search § 87(2)(b). PO Mako stated that his team also has a blue van, but he did not know to whom it was assigned that day. The first time PO Mako saw the prisoner was when § 87(2)(b) was inside the cell in the stationhouse. The only interaction he had with § 87(2)(b) was when he was taken out of the cell to sign his DAT for his release. At this time, PO Mako noticed a small abrasion on § 87(2)(b)'s head, for which a medical treatment of prisoner form was filled out. PO Mako did not fill out the form himself, but he believed that he signed it. He was unaware of the circumstances of § 87(2)(b)'s injury and did not know if it was sustained before or after § 87(2)(b) was brought to the 44th Precinct stationhouse. No officers were injured in the course of the arrest. Detective Paradiso, who is listed on § 87(2)(b)'s DAT, was assigned to the prisoner van on the day of § 87(2)(b)'s arrest, and would have photographed and fingerprinted all prisoners.

Medical Records

§ 87(2)(b) s **medical records** (Encl. 16A-AA) indicate that he was admitted to § 87(2)(b) at § 87(2)(b) and discharged at § 87(2)(b). He stated his chief complaint as “I was beat up by NYPD Narcotics officers,” and further stated that he was grabbed by the officers, that a knee was placed in his back, and that his head was dragged on the sidewalk (Encl. 16M, 16P). The attending physician, § 87(2)(b), noted that § 87(2)(b) suffered an injury to his upper back and ribs, as well as a facial abrasion. He was diagnosed with a sprain on an unknown part of his back (Encl. 16J), but his X-rays showed no fractures. § 87(2)(b) was administered Ibuprofen and Cyclobenzaprine for pain and released.

Police Department Documents

The **Roll Call** for the Narcotics Borough Bronx 44 Precinct Module for August 24, 2007 (Encl. 17A) shows that Detective Carbonell and PO Ames (whose rank is incorrectly listed as “Detective”) were assigned to work from 6:30 AM until 3:00 PM. Both officers signed out at 10:40 PM. The Roll Call lists that they went to Bronx Criminal Court to obtain a search warrant at some point during that tour.

The **Movement Sheet** for August 24, 2007 (Encl. 18A-B) notes that Detective Carbonell and PO Ames went to Bronx Criminal Court at 7:30 AM, and that, along with Lieutenant Fasano, PO Mako, PO Perez, Detective Paradiso and Detective Vasquez, they began buy-and-bust operations at 3:00 PM.

The **Tactical Plan** prepared for August 24, 2007 by Lieutenant Fasano (Encl. 19A) indicates that a tactical meeting was conducted at 3:00 PM. PO Mako was the arresting officer, and was assigned to the lead car, a black Jeep, with Lieutenant Fasano and PO Perez. Detective Carbonell, PO Ames and Detective Smith were assigned to the chase car, a blue Dodge van, and Detective Paradiso and Detective Vasquez were assigned to the white prisoner van.

The **44th Precinct Command Log** for August 24, 2007 (Encl. 20A) lists § 87(2)(b)'s arrest. The entry notes that he refused medical attention and was released from the stationhouse at 8:15 PM.

A search of the **Stop Question & Frisk Database** (Encl. 21A) shows that no UF-250s were completed for § 87(2)(b) or § 87(2)(b) on August 24, 2007 within the confines of the 44th Precinct.

Civilians' CCRB and Criminal Conviction Histories

§ 87(2)(b) has never been involved in a CCRB case before. § 87(2)(b) was a complainant/victim in CCRB case § 87(2)(b).

[illegible]

Officers' CCRB Histories

Detective Rolando Carbonell has been employed by the NYPD for six years. A charge of discourtesy was substantiated against him in CCRB case #200403560, and the Police Department imposed instructions. Police Officer Keith Ames has a five year tenure with the CCRB. No allegations of misconduct have ever been substantiated against him.

Conclusions and Recommendations

Officer Identification and Pleading of Allegations

Although the arrest of § 87(2)(b) was assigned to PO Mako, the officers interviewed agreed that PO Mako completed the paperwork for all arrests made that day. PO Mako and Lieutenant Fasano identified PO Ames and Detective Carbonell as the officers who placed § 87(2)(b) under arrest. The roll call and tactical plan confirm that these officers were present in the area and working together. § 87(2)(g)

§ 87(2)(b) initially claimed that Detective Carbonell pushed the side of his forehead into the ground, but later said that it was PO Ames. § 87(2)(b) who was not involved in the struggle, attributed the action to Detective Carbonell. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Although he stated that some of his property was thrown to the ground, another officer later returned it to him.

Undisputed Facts

It is undisputed that § 87(2)(b) was placed under arrest § 87(2)(a) 160.50 at 5:40 PM on August 24, 2007. He was released on a desk appearance ticket.

Disputed Facts:

§ 87(2)(b), § 87(2)(g)

The civilians both alleged that Detective Carbonell inquired about whether § 87(2)(b) was mentally retarded, and that officers frisked § 87(2)(b). As noted above, the officers had no recollection of why or how § 87(2)(b) was arrested or of their subsequent interaction with the civilians. § 87(2)(b), § 87(2)(g) § 87(2)(b) further alleged that PO Ames and Detective Carbonell threatened him, but § 87(2)(b) did not mention this, and the officers did not recall it.

Assessment of Evidence:

§ 87(2)(b), § 87(2)(g)

Both § 87(2)(b) and § 87(2)(b) stated that Detective Carbonell and PO Ames approached them as they stood on § 87(2)(b) sharing a tobacco cigarette. The two men had been walking together for approximately ten minutes, and neither recalled interacting with other civilians immediately prior to the officers' approach. After being ordered to stop by Detective Carbonell, both § 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) asked only why they were being stopped before Detective Carbonell initiated the physical interaction that culminated in § 87(2)(b)'s arrest. Both § 87(2)(b) and § 87(2)(b) stated that Detective Carbonell was the first officer to make contact with § 87(2)(b) and that both officers were involved in bringing him to the ground. § 87(2)(b) alleged that PO Ames drove his knee into § 87(2)(b)'s back. § 87(2)(b) did not mention this, but stated that the two officers, both large men, were blocking his view. He stated that he saw both officers on § 87(2)(b)'s back and that PO Ames was "mainly on top of him." § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

As noted above, Detective Carbonell and PO Ames did not remember physically arresting § 87(2)(b) but did not deny that they might have done so. All officers interviewed agreed that PO Mako was the designated arresting officer on August 24, 2007. The narrative on the arrest report states that § 87(2)(b) flared his arms, refused to cooperate with an investigation, and refused to leave a location, but PO Mako stated that he was not present to witness the arrest. Lieutenant Fasano explained that the assigned arresting officer, rather than the officers who effected the physical arrest, would have been the one to complete the paperwork and write the narrative. PO Mako stated that he knew PO Ames and Detective Carbonell to have made the arrest of § 87(2)(b). He said that the two officers told him later that they had observed § 87(2)(b) make some sort of exchange and that when they approached § 87(2)(b) he began to scream and act erratically. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) stated that he suffered back pain and contusions as a result of the force used to arrest him. He provided the investigation with photographs of his injuries and access to his medical records from § 87(2)(b) where he went to the Emergency Room after being released from the stationhouse on § 87(2)(b). The medical records confirmed these injuries and the fact that he told medical personnel that they occurred in the course of his arrest.

§ 87(2)(b) alleged that after he was handcuffed, Detective Carbonell frisked him and removed objects from his pockets, throwing them on the ground. § 87(2)(b) also recalled that items were removed from § 87(2)(b)'s pockets, but he attributed the action to PO Ames, and stated that he himself was frisked and searched by Detective Carbonell, who placed his hands inside § 87(2)(b)'s front pockets. Both civilians alleged that Detective Carbonell asked either his partner, § 87(2)(b) or § 87(2)(b) himself if § 87(2)(b) was retarded. They interpreted this as an insult to his intelligence. Finally, § 87(2)(b) claimed that PO Ames threatened to punch him in the mouth and to tase him "all day in a cell" and that Detective Carbonell warned him that he was a seventeen-year veteran on the NYPD and that it was "on" or "on and poppin'" the next time they saw each other. § 87(2)(b), § 87(2)(g)

Again, Detective Carbonell and PO Ames had no recollection of having interacting with either man.

By all accounts, Lieutenant Fasano and his operator, PO Mako arrived while § 87(2)(b) was being placed into the team's prisoner van. Lieutenant Fasano stated that he was informed at that time that § 87(2)(b) had been in an aggravated state and had refused to comply with orders during a narcotics investigation, but he did not view this behavior himself. He did not witness any of the allegations, and did not see § 87(2)(b) § 87(2)(b) at the scene. The lieutenant was informed that the contusion to § 87(2)(b)'s forehead was preexisting. PO Mako, who arrived with him, also viewed the injury to § 87(2)(b)'s head after he had been brought to the stationhouse, but stated that he did not know how or when he sustained it.

Allegation A: Abuse of Authority: Detective Rolando Carbonell stopped § 87(2)(b) and § 87(2)(b)

Allegation B: Force: Detective Rolando Carbonell used physical force against § 87(2)(b)

Allegation C: Force: Police Officer Keith Ames used physical force against § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation E: Abuse of Authority: Detective Rolando Carbonell searched § 87(2)(b)

[illegible]

[REDACTED]

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